

12 & 13 GEO. 6.

CHAPTER 1.

An Act to enable stock to which the Colonial Stock Act, 1877, applies to be made transferable by instrument in writing, and to provide for the extension of the Colonial Stock Acts, 1877 to 1934, to stock of Governments or authorities established for controlling or administering services or matters of common interest to the inhabitants of more than one of the colonies or territories to whose stock any of the said Acts apply or could be made applicable. [16th December 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Regulations made under section sixteen of the Colonial Stock Act, 1877, may, notwithstanding anything in that Act or in the Colonial Stock Act, 1892, provide that the stock to which the regulations relate shall be transferable by instrument in writing in accordance with the regulations and in no other manner: Stock may be made transferable by instrument in writing. 40 & 41 Vict. c. 59.

Provided that regulations shall not be made for the purpose specified in this subsection with respect to any stock unless authority for the making of regulations for that purpose has been given by a law of the legislature or other authority having power to make laws for the Dominion, colony or territory of whose public debt the stock forms part. 55 & 56 Vict. c. 35.

(2) This section applies as well to stock issued before, as to stock issued after, the passing of this Act, and, accordingly, in relation to stock issued before the passing of this Act, so much of the said section sixteen as requires regulations thereunder to be made before the issue of the stock shall not apply to regulations made for the purpose specified in subsection (1) of this section and the regulations, when made, shall have effect notwithstanding anything in any previous regulations applicable to the stock and notwithstanding anything in the terms on which the stock was issued.

2.—(1) His Majesty may by Order in Council direct that the Colonial Stock Acts, 1877 to 1934, and the provisions of section one of this Act, shall be extended, subject to such modifications and to such conditions as may appear expedient to His Majesty, so as to apply to stock issued after the passing of this Act by any Government or authority specified in the Order, being a Government or authority established for controlling or administering services or matters of common interest to the inhabitants of Power to extend Colonial Stock Acts to stock of Governments and authorities operating in relation to two or more countries.

more than one of the colonies or territories to whose stock any of the said Acts apply or could be made applicable.

(2) Any Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

11 & 12 Geo. 5.
c. 58.
63 & 64 Vict.
c. 62.

(3) The expression "colonial stock" in section eleven of the Trusts (Scotland) Act, 1921, shall include any stock to which section two of the Colonial Stock Act, 1900, applies by virtue of an Order in Council made under this section.

Short title
and citation.

3. This Act may be cited as the Colonial Stock Act, 1948, and this Act and the Colonial Stock Acts, 1877 to 1934, may be cited together as the Colonial Stock Acts, 1877 to 1948.

CHAPTER 2.

An Act to make provision as to the effect of the expiry of the Debts Clearing Offices and Import Restrictions Act, 1934. [16th December 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Effect of
expiry of Act.
24 & 25 Geo. 5.
c. 31.

1.—(1) Notwithstanding anything in subsection (2) of section seven of the Debts Clearing Offices and Import Restrictions Act, 1934, on the expiry of that Act—

- (a) the Clearing Offices established thereunder shall cease to exist ;
- (b) so much of any debt to which any of the orders made under that Act applied as has not then already been discharged shall, instead of being owed to the Clearing Office, be owed to the person to whom it would have been owed if the said Act had not been passed ; and
- (c) subject to the provisions of paragraph (b) of this subsection, any rights or liabilities of any of the said Clearing Offices (including, in particular, rights in respect of sums advanced by them to exporters and others and not repaid) shall become rights and liabilities of the Crown,

and the Treasury shall do all such things as may be necessary or expedient for winding up the affairs of the said Clearing Offices.